

Court No. - 29

Case :- WRIT - C No. - 41977 of 2018

Petitioner :- Ishwar Dayal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Santosh Kr. Singh Paliwal, Awadh Narayan Tiwari

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble Pankaj Mithal, J.

Hon'ble Pankaj Bhatia, J.

Heard learned counsel for the petitioner and Mr. Baleshwar Chaturvedi, learned counsel for the respondent Nos. 1, 2 and 3.

Petitioner is aggrieved by the recovery certificate dated 28.08.2018 under which a sum of Rs. 2,20,60/- is sought to be recovered as electricity dues from him.

Learned counsel for the petitioner submits that the petitioner is ready and willing to make the payment of the entire dues provided some time is allowed and installments are fixed.

In view of the above, the petitioner may approach the Executive Engineer concerned in accordance with Section 6.14 of the Electricity Supply Code 2005 for fixing installments.

Accordingly, we dispose of the writ petition with liberty to the petitioner to approach Executive Engineer and if the petitioner so approaches, he will consider the application simplistically in accordance with the aforesaid provision most expeditiously if possible within one month.

Order Date :- 18.12.2018

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